

GALLANT IAS ACADEMY

PRELIMS CUM MAINS BATCH 2027

POLITY

MODULE 1: INTRODUCTION TO THE CONSTITUTION

UPSC Syllabus: Polity (Mains)

- Indian Constitution: Historical Underpinnings, Evolution, Features, Amendments, Significant Provisions and Basic Structure.
- Functions and Responsibilities of the Union and the States.
- Issues and Challenges Pertaining to the Federal Structure.
- Devolution of Powers and Finances up to Local Levels and Challenges Therein.
- Separation of Powers between various organs.
- Dispute Redressal Mechanisms and Institutions.
- Comparison of the Indian Constitutional Scheme with that of Other Countries.
- Parliament and State Legislatures: Structure, Functioning, Conduct of Business, Powers and Privileges and Issues Arising out of these.
- Structure, Organization and Functioning of the Executive and the Judiciary; Ministries and Departments of the Government.
- Salient Features of the Representation of People's Act.
- Appointment to various Constitutional Posts, Powers, Functions and Responsibilities of various Constitutional Bodies.
- Statutory, Regulatory and various Quasi-judicial Bodies.

UPSC Syllabus: Polity (Prelims)

- Indian Polity and Governance: Constitution, Political System, Panchayati Raj, Public Policy, Rights Issues, etc.

Constitution

"The Constitution is not a mere lawyers' document, it is a vehicle of life and its spirit is always the spirit of age."

Functions of the Constitution

- The **first function** of a constitution is to provide a set of **basic rules** that allow for **minimal coordination** amongst members of a society.
- The **second function** of a constitution is to **specify who has the power to make decisions** in a society. It decides how the government will be constituted.
- The **third function** of a constitution is to set **some limits** on what a government can impose on its citizens. These limits are fundamental in the sense that the government may never trespass them (**Doctrine of Limited Government**).
- The **fourth function** of a constitution is to enable the government to **fulfil the aspirations of a society** and create conditions for a just society.
- A constitution expresses the **fundamental identity of a people**: its **Moral and Political Identity**.

What is a Constitution

- It is a **document or set of documents** that seeks to perform the above functions.
 - **Written Constitution:** India and US Constitution.
 - **Unwritten Constitution:** UK Constitution.
- The **Indian Constitution was not subjected to a referendum** but it nevertheless carried enormous public authority because it had the consensus and backing of leaders who were themselves popular.

Written vs Unwritten Constitution

- **Codification:** Written constitutions are codified in a single document; unwritten constitutions are not codified and are dispersed across customs, laws, and conventions.
- **Nature:** Written constitutions are mostly enacted; unwritten constitutions mostly evolve over time.
- **Method of Framing:** Written constitutions are made by a Constituent Assembly or representative body; unwritten constitutions evolve gradually through customs, conventions, and laws.
- **Source of Law:** A written constitution is considered a formal source of law; an unwritten constitution is not a formal source of law.
- **Supremacy:** In a written constitution, the Constitution is supreme; in an unwritten constitution, Parliament is supreme.

Rigid vs Flexible Constitution

- Rigid Constitutions are generally **difficult to amend**, while in flexible constitutions the amendment process is **simple** and the same as the ordinary law-making process.
- The **Indian Constitution is a judicious mix of rigidity and flexibility.**

Federal Government vs Unitary Government

- A **Federal Government** provides for **dual polity**. The US Constitution is an example of a proper federal conception.
- A written constitution can be either federal or unitary.
- A **Unitary Constitution** provides for a single government called the national government.
- An **Unwritten constitution necessarily has to be unitary.**
- The **Indian Constitution is a federation with a unitary bias.**

Objectives Resolution

- The **Objectives Resolution** (the resolution that defined the aims of the Assembly) was moved by **Nehru in 1946**. This resolution encapsulated the aspirations and values behind the Constitution.

Drawn from Various Sources: Borrowed Constitution or Not?

- BR Amedhkar says : "One likes to ask whether there can be anything new in a constitution framed at this hour in the history of the world... The only new thing, if there can be any, in a constitution framed so late in the day are the variations, made to remove the failures and accommodate it to the needs of the country."
- **We have borrowed features and adapted to our circumstances**

Amendment

- Amendment refers to **addition, variation, and repeal** of provisions of the Constitution. For example: the **106th Constitutional Amendment Act (Nari Shakti Vandan Adhiniyam).**

Longhiest Written Constitution

- The Indian Constitution, in its current form, has **25 Parts and 12 Schedules**.
- Schedules provide **explanation to the Articles** of the Constitution.

Parts of the Constitution

- **Part I:** The Union and its Territory: Articles 1 to 4
- **Part II:** Citizenship: Articles 5 to 11
- **Part III:** Fundamental Rights: Articles 12 to 35
- **Part IV:** Directive Principles of State Policy: Articles 36 to 51
- **Part IV-A:** Fundamental Duties: Article 51A
- **Part V:** The Union: Articles 52 to 151
- **Part VI:** The States: Articles 152 to 237
- **Part VII:** (Deleted) States in Part B of First Schedule: Deleted by the 7th Amendment
- **Part VIII:** The Union Territories: Articles 239 to 242
- **Part IX:** The Panchayats: Articles 243 to 243-O
- **Part IX-A:** The Municipalities: Articles 243-P to 243-ZG
- **Part IX-B:** The Co-operative Societies: Articles 243-ZH to 243-ZT
- **Part X:** The Scheduled and Tribal Areas: Articles 244 to 244A
- **Part XI:** Relations between Union and States: Articles 245 to 263
- **Part XII:** Finance, Property, Contracts and Suits: Articles 264 to 300A
- **Part XIII:** Trade and Commerce within the Territory of India: Articles 301 to 307
- **Part XIV:** Services under the Union and the States: Articles 308 to 323
- **Part XIV-A:** Tribunals: Articles 323A to 323B
- **Part XV:** Elections: Articles 324 to 329A
- **Part XVI:** Special Provisions relating to certain classes: Articles 330 to 342
- **Part XVII:** Official Language: Articles 343 to 351
- **Part XVIII:** Emergency Provisions: Articles 352 to 360
- **Part XIX:** Miscellaneous: Articles 361 to 367
- **Part XX:** Amendment of the Constitution: Article 368
- **Part XXI:** Temporary, Transitional and Special Provisions: Articles 369 to 392
- **Part XXII:** Short Title, Commencement, Authoritative Text: Articles 393 to 395

Schedules of the Constitution

- **1st Schedule:** Names of States and Union Territories and their territorial extent. Lists all States and UTs with their boundaries.
- **2nd Schedule:** Salaries and allowances of constitutional authorities, including the President, Governors, Judges, CAG, Speaker, etc.
- **3rd Schedule:** Forms of Oaths and Affirmations for Union and State ministers, MPs, MLAs, Judges, etc.
- **4th Schedule:** Allocation of seats in the Rajya Sabha for each State and UT.
- **5th Schedule:** Provisions relating to the administration and control of Scheduled Areas and Scheduled Tribes.
- **6th Schedule:** Provisions for the administration of Tribal Areas in Assam, Meghalaya, Tripura, and Mizoram, establishing Autonomous District Councils.
- **7th Schedule:** Division of powers between the Union and the States, comprising the Union List, State List, and Concurrent List.
- **8th Schedule:** Lists the 22 Official Languages of India (originally 14, now expanded to 22).
- **9th Schedule:** Contains Acts and Regulations protected from judicial review, mostly

relating to land reforms; added via the 1st Amendment.

- **10th Schedule:** Anti-Defection provisions, laying out the grounds and process for disqualification of legislators.
- **11th Schedule:** Powers, authority, and responsibilities of Panchayats (29 subjects), added by the 73rd Amendment Act (1992).
- **12th Schedule:** Powers, authority, and responsibilities of Municipalities (18 subjects), added by the 74th Amendment Act (1992).

Nation, State and Government

- **State:** A state is a political entity defined by a specific territory, a permanent population, a government that exercises authority, and the sovereignty to make and enforce laws without external interference.
- **Nation:** A nation is a cohesive community of people bound by shared characteristics such as language, culture, history, traditions, and often a sense of belonging to a common territory. It represents a collective identity shaped by shared experiences and aspirations.
- Governments are working arrangements within the state.
- **The state is abstract** while the government **is concrete**.

Democracy

- Democracy is a system of government where the **supreme power is vested in the people**.
- It can be of two forms: **Direct Democracy** and **Representative Democracy**.

Separation of Powers and Checks and Balances

- Presence of **Legislature, Executive and Judiciary** and Independent Bodies.
- Designed to **avoid tyranny by any branch** of government.

Republican Government

- The Head of the State is **directly or indirectly elected**.
- In the **USA**, the Head of the state is **directly elected**, while in **India**, the Head of the state is **indirectly elected**.

Parliamentary Form of Government

- The Constitution of India **adopted the British Parliamentary System** instead of the American Presidential System.
- Features of the Parliamentary System:
 - Presence of **nominal and real executives**;
 - **Majority party rule**;
 - **Collective responsibility** of the executive to the legislature;
 - Membership of the ministers in the legislature;
 - Leadership of the **Prime Minister** or the **Chief Minister**;
 - Possibility of **dissolution of the lower House** (Lok Sabha or Assembly).

Mix of Parliamentary Sovereignty and Judicial Supremacy

- In **Britain**, Parliament becomes supreme.
- In the **USA**, the Judiciary becomes supreme because of the power of **judicial review** and interpretation of the Constitution.
- India is a judicious mix of the two approaches and envisages **Constitutional Supremacy**.

Integrated and Independent Judiciary

- **Integrated Judiciary**: Supreme Court, High Court, Subordinate Court. India has an integrated judicial system, while the USA does not have an integrated judiciary: in the USA, federal laws are enforced by federal courts, while state laws are enforced by state courts.
- **Independent Judiciary**: Various constitutional provisions ensure judicial independence.

Single Citizenship

- India follows **norms of single citizenship**, while in the **USA**, norms of **dual citizenship** exist, where a person is a citizen of both the state and the USA, exercising separate sets of rights.

Universal Adult Franchise

- This provision was passed **virtually without any debate** in the Constituent Assembly.
- Regardless of caste, religion, or gender, every citizen above the age of **21 (later lowered to 18)** was given the right to vote.

Secularism

- India follows a **positive conception of secularism**, as against the **negative model of the West**.

Rights and Directive Principles of State Policy

Rights

- Rights are **claims from the state**.
- Fundamental Rights are different from other rights available to citizens. Ordinary legal rights are **protected and enforced by ordinary law**.
- Fundamental Rights are **protected and guaranteed by the Constitution** of the country.
- Ordinary rights may be changed by the legislature through the ordinary process of law-making, but a **fundamental right may only be changed by amending the Constitution itself**.

Directive Principles of State Policy

- The chapter on Directive Principles lists mainly three things:
 - The **goals and objectives** that we as a society should adopt;
 - Certain **rights** that individuals should enjoy apart from the Fundamental Rights;
 - And certain **policies** that the government should adopt.
- These guidelines are **not justiciable**.

Relationship between Fundamental Rights and DPSP

- It is possible to see both Fundamental Rights and Directive Principles as **complementary to each other**. Fundamental Rights **restrain** the government from doing certain things, while Directive Principles **exhort** the government to do certain things.
- Fundamental Rights mainly **protect the rights of individuals**, while Directive Principles ensure the **well-being of the entire society**.

Fundamental Duties

- In **1976**, the **42nd Amendment** to the Constitution was passed. Among other things, this amendment inserted a list of Fundamental Duties of Citizens. In all, **ten duties** were originally enumerated. However, the Constitution does not say anything about enforcing these duties.
- It must be noted that our Constitution does **not make the enjoyment of rights dependent or conditional upon fulfilment of duties**. In this sense, the inclusion of fundamental duties has not changed the status of our fundamental rights.

Emergency Provisions, Independent Bodies and Basic Structure

- **Emergency Provisions:** Deal with extraordinary circumstances such as **National Emergency, State Emergency** and **Financial Emergency**.
- **Independent Bodies:** Election Commission, Finance Commission, Union Public Service Commission, etc.
- **Third Tier Government:** The **73rd and 74th Amendments** provide for Local Self Government.
- **Cooperative Societies:** The **97th Constitutional Amendment Act** provides for the establishment of Cooperative Societies.
- **Basic Structure of the Indian Constitution:** The 'Basic Structure Doctrine' is a **judicial invention** which holds that the Constitution contains some core elements or essence that cannot be altered even through a constitutional amendment.

Types of Majority

- **Absolute Majority:** Majority of more than 50% of the total membership of the House.
- **Simple Majority (Functional Majority):** Majority of more than 50% of members present and voting in the House.
- **Effective Majority:** Majority of more than 50% of the effective strength. The Constitution refers to this as "of the then all members." Effective Strength = Total Strength minus Vacant Seats.
- **Special Majority (Article 249, 312):** Majority of more than 2/3rd of the members present and voting.
- **Special Majority (Article 368):** Majority of more than 2/3rd of the members present and voting, plus a majority of more than 50% of the total membership of the House.
- **Special Majority (Federal Bearing):** Majority of more than 2/3rd of the members present and voting, plus a majority of more than 50% of the total membership of the House, plus ratification by 50% of the States by simple majority.
- **Special Majority (Article 61):** Majority of more than 2/3rd of the total membership of the House.

Previous Years' Questions (PYQs)

Module 1: Introduction to the Constitution

[UPSC Prelims 2023] Chief Purpose of the Constitution

Which one of the following statements best reflects the Chief purpose of the 'Constitution' of a country?

- (a) It determines the objective for the making of necessary laws.
- (b) It enables the creation of political offices and a government.
- (c) It defines and limits the powers of government.
- (d) It secures social justice, social equality and social security.

[UPSC Prelims] Definition of the Term 'State'

Which one of the following best defines the term 'State'?

- (a) A community of persons permanently occupying a definite territory, independent of external control and possessing an organized government.
- (b) A politically organized people of a definite territory and possessing an authority to govern them, maintain law and order, protect their natural rights and safeguard their means of sustenance.
- (c) A number of persons who have been living in a definite territory for a very long time with their own culture, tradition and government.
- (d) A society permanently living in a definite territory with a central authority, an executive responsible to the central authority and an independent judiciary.

[UPSC Prelims 2020] Constitutional Government by Definition

A constitutional government by definition is a:

- (a) Government by legislature
- (b) Popular government
- (c) Multi-party government
- (d) Limited government

[UPSC Prelims 2014] Restrictions on Liberty vs State Authority

Consider the following statements: A Constitutional Government is one which:

1. Places effective restrictions on individual liberty in the interest of State Authority.
2. Places effective restrictions on the Authority of the State in the interest of individual liberty.

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only (c) Both 1 and 2 (d) Neither 1 nor 2

[UPSC Prelims 2021] Constitutional Government Means

Constitutional government means:

- (a) A representative government of a nation with federal structure
- (b) A government whose Head enjoys nominal powers
- (c) A government whose Head enjoys real powers
- (d) A government limited by the terms of the Constitution